

STATE OF NEW YORK

2110--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 15, 2025

Introduced by M. of A. BERGER -- read once and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to expanding the definition of mental health care provider for purposes of certain sex offenses

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Subdivision 13 of section 130.00 of the penal law, as
2 amended by chapter 636 of the laws of 2024, is amended to read as
3 follows:
4 13. "Mental health care provider" shall mean a licensed physician,
5 licensed psychologist, registered professional nurse, licensed clinical
6 social worker, licensed master social worker under the supervision of a
7 physician, psychologist or licensed clinical social worker, [~~licensed~~
8 ~~mental health counselor or a licensed marriage and family therapist~~
9 behavior analyst, mental health practitioner, or any mental health
10 professional licensed pursuant to title eight of the education law.
11 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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